

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 10-cv-00309-CBS

KIMBERLY N. SQUIRES, by and through her Guardian and Natural Parent,
LYLE K. SQUIRES

Plaintiff,

v.

BRECKENRIDGE OUTDOOR EDUCATION CENTER,

Defendant.

SPECIAL VERDICT FORM A

DO NOT ANSWER THIS SPECIAL VERDICT FORM A IF YOUR FOREPERSON HAS
COMPLETED AND ALL JURORS HAVE SIGNED SPECIAL VERDICT FORM B.

We, the jury, present our Answers to Questions submitted by the Court, to which we
have all agreed:

1. Did the Plaintiff, Kimberly Squires, have injuries? (Yes or No)

ANSWER: Yes

2. Did the Defendant, Breckenridge Outdoor Education Center, engage in reckless
conduct? (Yes or No)

ANSWER: No

3. Was the Defendant's reckless conduct, if any, a cause of any of the injuries
claimed by the Plaintiff? (Yes or No)

ANSWER: _____

We, the jury, having answered one or more of the above three questions "no," find
the issues for the Defendant, Breckenridge Outdoor Education Center.

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Plaintiff,

v.

BRECKENRIDGE OUTDOOR EDUCATION CENTER,

Defendant.

SPECIAL VERDICT FORM B

DO NOT ANSWER THIS SPECIAL VERDICT FORM B IF YOUR FOREPERSON HAS
COMPLETED AND ALL JURORS HAVE SIGNED SPECIAL VERDICT FORM A.

We, the jury, present our Answers to Questions submitted by the Court, to which we
have all agreed:

1. Did the Plaintiff, Kimberly Squires, have injuries? (Yes or No)

ANSWER: _____

2. Did the Defendant, Breckenridge Outdoor Education Center, engage in reckless
conduct? (Yes or No)

ANSWER: _____

3. Was the Defendant's reckless conduct, if any, a cause of any of the injuries
claimed by the Plaintiff? (Yes or No)

ANSWER: _____

If you find that Kimberly Squires did have injuries, and you further find that Breckenridge Outdoor Education Center engaged in reckless conduct and that such reckless conduct was a cause of any of the Plaintiff's injuries, then answer the following questions:

4. Was the non-party, James Michael Goodwin, negligent? (Yes or No)

ANSWER: _____

5. Was the negligence, if any, of the non-party James Michael Goodwin, a cause of any of the injuries claimed by the Plaintiff? (Yes or No)

ANSWER: _____

6. State your answers to the following questions relating to the Plaintiff's damages that were caused by the reckless conduct, if any, of Defendant Breckenridge Outdoor Education Center and the negligence, if any, of the non-party James Michael Goodwin:

a. What is the total amount of Plaintiff's damages, if any, for noneconomic losses or injuries, excluding any damages for physical impairment?

Noneconomic losses or injuries are those losses or injuries described in numbered paragraph 1 of Instruction No. 19. You should answer "0" if you determine there were none.

ANSWER: _____

b. What is the total amount of Plaintiff's damages, if any, for economic losses, excluding any damages for physical impairment? Economic losses are those losses described in numbered paragraph 2 of Instruction No. 19. You should answer "0" if you determine there were none.

ANSWER: _____

c. What is the total amount of Plaintiff's damages, if any, for physical

impairment? You should answer "0" if you determine there were none.)

ANSWER: _____

Answer the following question 7 only if your answer to all five questions 1, 2, 3, 4, and 5 is "yes."

7. Taking as 100 percent the combined reckless conduct of the Defendant and the negligence of the non-party that caused the Plaintiff's injuries, what percentage of the fault was the Defendant's and what percentage was the non-party's?

ANSWER:

Percentage charged to the reckless conduct of Defendant Breckenridge Outdoor Education Center: _____%

Percentage charged to the negligence of non-party James Michael Goodwin:
_____%

MUST TOTAL: 100%

Signatures of all jurors:

Foreperson

Signatures of all jurors:

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Jurors'
names
Redacted